

**EDUCATIONAL ASSESSMENT AND EXAMINATIONS
SERVICE (EAES)**

**NATIONAL EXIT EXAM FOR LL.B PROGRAMME
STUDENTS OF ETHIOPIAN LAW SCHOOLS**

2021/2022 ACADEMIC YEAR

JUNE 28, 2022

TIME ALLOWED: 3 Hours

PART I: PRIVATE LAWS

INSTRUCTIONS:

1. THIS EXAM HAS FIVE SECTIONS: ATTEMPT EACH SECTION ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. THIS IS A CLOSED BOOK EXAM EXCEPT FOR PERTINENT ETHIOPIAN LAWS.
3. BUTTRESS YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS WHENEVER APPROPRIATE.
4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.
5. YOU MAY ASSUME FACTS WHERE NECESSARY.
6. WRITE LEGIBLY.
7. SWITCH OFF YOUR MOBILE PHONE.

DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.

SECTION I: MULTIPLE CHOICE ITEMS (30 MARKS)

CHOOSE THE BEST ANSWER FROM THE GIVEN CHOICES AND WRITE THE LETTER OF YOUR CHOICE ON THE ANSWER SHEET PROVIDED

1. Contractual obligation is distinguished from criminal obligation in that:
 - A. Contractual obligation implies the existence of an obligee and obligor.
 - B. Violation of contractual obligation imposes obligation of a monetary value.
 - ☒ C. Contractual obligation has no implication on public interest and is solely an issue and concern of private interest alone.
 - D. Court plays active role in the enforcement of contractual obligation.
 - E. Contractual obligation may be used as a means to enforce moral values.

2. Object of a contract under Article 1678(b) refers to:
 - A. The economic gain that the parties expect to get from a contract.
 - ☒ B. The obligations of both parties to a contract which is the subject matter of the contract.
 - C. The motives of both parties or at least one of the parties to a contract.
 - D. The subject matter of a contract.
 - E. The ultimate utility of the contract to the general public.

3. Which of the following statement is contrary to the law of interpretation of contracts?
 - A. A general term in a contract shall be given narrower meaning. †
 - B. Good faith and common intention of the parties justify departure from clear terms of the contract. ✓
 - C. Article 1739 is a further elaboration of Article 1738. †
 - ☒ D. Ambiguous terms of a contract shall be given the meaning commonly intended by both parties. ✓
 - ☒ E. Court may complement the terms of the contract by interpretation. †

4. One of the following is NOT specific performance under Ethiopian contract law.
- A. Court orders police to force the debtor to deliver a specified thing to the creditor.
 - ☒ B. Court authorizes the creditor to declare unilateral cancellation of a contract.
 - C. Court gives power of agency to the creditor to represent the debtor on the matter specified as obligation of the debtor on the contract.
 - D. Court authorizes the debtor to deposit a thing that he is bound to deliver to the creditor at the risk and expense of the creditor in a public warehouse.
 - E. Court gives power of agency to the debtor to sell perishable goods on behalf and by the name of the creditor.
5. A contract that provides an alternative debtor for the person who claims as per Articles 1940, 194 and 1942 is a contract of:
- ☒ A. Counter-guarantee.
 - B. Secondary guarantee.
 - C. Subrogation.
 - D. Delegation.
 - E. Assignment.
6. One of the following statements is NOT true about the nature of marriage?
- A. All types of marriage shall satisfy the same validity requirements.
 - B. All types of marriage shall be registered before competent officer of civil status.
 - C. All types of marriage produce similar legal consequences.
 - ☒ D. All types of marriage follow the same celebration formality.
 - E. All types of marriage dissolve following similar grounds of dissolution.

7. According to the Revised Family Code, marriage shall produce effect from:
- A. Time of registration of marriage.
 - ☒ B. Time of celebration of marriage.
 - C. Time of betrothal of marriage.
 - D. Time of issuance of certificate of marriage.
 - E. Time of consummation.
8. In the absence of contract of marriage or where the contract of marriage is invalid under the Law, one of the following is a common property.
- A. The property which the spouses possess on the day of their marriage.
 - B. The property which a spouse acquires by succession after marriage. ✗
 - ☒ C. All property acquired by a spouse during marriage by onerous title.
 - D. The property which a spouse acquires by donation after their marriage. ✗
 - E. The property which the spouses possess before the day of their marriage. ✗
9. As a matter of rule, one of the statements is true about administration of personal property.
- A. The spouses shall jointly administer their respective personal property.
 - B. Each of the spouses shall freely dispose his/her personal property.
 - C. Each of the spouses shall freely dispose the personal property of the other spouse. ✗
 - D. Each of the spouses shall freely administer the personal property of the other spouse. ✗
 - ☒ E. Each of the spouses shall freely collect income from the personal property the other spouse. ✓
10. A spouse can do one of the following transactions without the agreement of the other spouse.
- A. Renting out a commonly owned house. ✗
 - B. Exchanging a commonly owned chair which has a value of Birr 600. ✗
 - C. Giving a birthday gift which has a value Birr 300. ✗
 - ☒ D. Borrowing Birr 400 from another person. ✓
 - E. Lending Birr 500 to another person. ●

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11. A husband may **NOT** be presumed to be the father of a child:
- A. If the child is born more than 180 days after the conclusion of the marriage. ✗
 - B. If the child is born within 300 days after the dissolution of marriage. ✗
 - ☒ C. If the child is born 300 days after the court declared the absence of the husband.
 - D. If the child is born within 180 days after the conclusion of marriage. ✗
 - E. If the child is born within 180 days after the dissolution of marriage. ✗
12. One of the following is **NOT** true about the obligation to supply maintenance.
- A. An obligation to supply maintenance exists between ascendants and descendants.
 - B. An obligation to supply maintenance exists between persons related by affinity in direct line. ✓
 - ☒ C. An obligation to supply maintenance does not exist between brothers and sisters. ✗
 - D. An obligation to supply maintenance subsists between a man and great grandparents.
 - E. An obligation to supply maintenance exists between the adopter and an adopted child.
13. Who will be the guardian or tutor of a child who used to live with his mother that has passed away?
- ☒ A. The father of the child.
 - B. The ascendants of the child.
 - C. The brothers or sisters of the child.
 - D. The aunt or uncle of the child.
 - E. Any relative who best serves the interest of the child.

14. One of the following shall NOT be grounds of dissolution of private limited company.
- A. Declaration of dissolution by the court for good cause.
 - B. Dissolution at the request of any member where the term of the company has been fixed.
 - C. Expansion of the company across states.
 - D. Bankruptcy or insolvency of a member.
 - E. If the capital of the PLC falls below the minimum amount fixed statutorily.

15. One of the following is NOT the features of joint venture under the commercial code of Ethiopia.
- A. The joint venture should not be known to third parties.
 - B. There are no formality requirements for the validity of a joint venture formation.
 - C. There is no registration or no publicity.
 - D. Acquiring legal personality before starting the business is a requirement in joint venture.
 - E. No name of its own; partners deal with third parties in their own names.

16. Among the following alternatives, which one is a characteristic of patrimony?
- A. A patrimony is vested on privileged persons. ✗
 - B. Patrimony is attached to its holder. ✓
 - C. Only capable persons have a patrimony. ✗
 - D. A person can have more than one patrimony. ✗
 - E. Patrimony can exist without a person to be a holder. ✓

17. Which one of the following alternatives is among the characteristics of ownership?
- A. It is a narrow right. ✗
 - B. It is a specific right. ✗
 - C. It is a bundle of rights. ✓
 - D. It is not an absolute right. ✓
 - E. It is the subset of other rights. ✗

18. Which one of the following alternatives is true about protection of possession through use of force?
- A. Circumstances do not matter to use force.
 - B. The possessor should use force before any legal action. ✗
 - C. Force can be used any time until the period for legal action is barred.
 - D. Any means or method can be used while using force. ✗
 - E. The possessor or the holder should use a reasonable force. ✓
19. Among the following, one is a mandatory requirement to acquire ownership via possession in good faith.
- A. There should be a contractual agreement that could be gratuitous. ✗
 - B. The purchaser should buy a corporeal movable thing from its owner. ✗
 - C. The purchaser should purchase the thing from a person who has a valid title. ✗
 - D. The buyer should purchase the thing from a person who has no valid title. ✓
 - E. The thing to be acquired could be either an ordinary or a special movable.
20. From the following alternatives one is an illegitimate cause of transferring and acquiring ordinary corporeal chattels.
- A. Delivery of the thing itself by the transferor to the transferee. ✗
 - B. Delivery of the document representing the thing to be transferred. ✗
 - C. Snatching of a good and lapse of a period of limitation for legal action. ✓
 - D. Transfer and acquisition of perfect ownership right over the thing. ✗
 - E. Transfer and acquisition of rights of usufruct over the thing to be possessed.
21. Among the following alternatives which one is the characteristic of servitude under the Ethiopian property law?
- A. It is a right in-personam. ✗
 - B. It is a personal right. ✗
 - C. It could exist in relation to one plot of land. ✗
 - D. It could exist in relation to a land owned by one person. ✗
 - E. It is a right in rem. ✓

22. One of the following alternatives is true about expropriation of private properties.
- A. It is the power of the sovereign that could be delegated.
 - B. It requires the consent of the owner of a private property. ✗
 - ☒ C. Properties are expropriated in the interest of the public at large. ✓
 - D. An owner who has opposed an expropriation is not entitled for ✗ compensation.
 - E. Properties might be expropriated for the interest of private investors. ✗
23. What could be the possible cause for the departure from the rule of equivalence in extra-contractual claims?
- A. Lack of sufficient evidence proving the exact amount of damage. ✗
 - B. Victim's/claimant's innocence. ✗
 - ☒ C. Victim's contribution to the materialization of damage. ✓
 - D. Wrongful acts committed without a superior order.
 - E. When a person causes an intentional damage the consequence of which expanded beyond what is reasonably expected. ✗
24. Which of the following is NOT a source of extra-contractual liability?
- A. Fault.
 - B. Activities one engages in or things possessed by a person.
 - C. Where a third party for whom a person is responsible incurs liability.
 - ☒ D. Crime.
 - E. Unlawful termination of a worker's contract of employment.
25. Which of the following is NOT the possible rationale for holding a person liable for the wrongful conducts of another?
- A. Control test.
 - B. Analogy with causation.
 - ☒ C. Abuse of power.
 - D. Deep pockets.
 - E. Economic and moral consideration.

26. Which of the following is **NOT** qualified to claim maintenance of a person /victim of mortal accident under our Civil Code of Ethiopia?
- A. Deceased person's son.
 - B. Deceased person's daughter.
 - ☒ C. Deceased person's brother.
 - D. Deceased person's father.
 - E. Deceased person's wife.
27. Which of the following is **NOT** a remedy under the law of extra-contractual liability?
- A. Monetary compensation for economic loss.
 - B. Restitution.
 - C. Remedial publication.
 - ☒ D. Forced performance.
 - E. Monetary compensation for moral damage.
28. A passenger who sustains bodily injury while travelling by the defendant's car for free can claim compensation only if he/she proves that:
- A. The car has no third party insurance coverage.
 - ☒ B. A driver/owner is at fault. ✓
 - C. He/she has committed no fault.
 - D. There was unjust enrichment by the owner.
 - E. There was a trespass by a driver.
29. An employee of a construction company (employer) building a library in a public university as a contractor was injured by a collapsing ladder and sustained a serious bodily damage as a result. Who should be held liable to compensate the bodily damage to the employee?
- ☒ A. The university.
 - ☒ B. The employer.
 - C. The employee him/herself.
 - D. The person who manufactured the ladder.
 - E. The university and the employer jointly.

30. Which of the following liabilities under extra-contractual liability law can be contractually limited?

- A. Inflicting bodily injury.
- B. Defamation.
- C. Liability for dangerous activities.
- ☒ D. Trespass.
- E. Injury to the rights of spouses.

SECTION II: MATCHING ITEMS (10 MARKS)

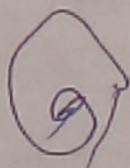
MATCH THE ITEMS UNDER 'A' WITH THOSE UNDER 'B'

Column A

1. Suretyship *E* ✓
2. The meeting of mind *B* ✓
3. The objective appearance of the offer
4. Urban land lease contract *D* ✓
5. Interpretation in favor of the debtor *A* ✓
- ☒ 6. Court order termination without cause *A* ✓
7. Creditor has to prove debtor's fault *D* ✓
8. Construed narrowly *F*
9. Guiding principle to search intention of parties *M* ✓
10. Partial performance possible *E G*

Column B

- A. Administrative contract ✓
- B. Consensus ad idem ✗
- C. Laissez-faire
- D* D. Written form
- E. Simple joint
- F. Gratuitous contract
- G. Divisible
- H. Do one's own best
- I. Joint obligation
- ☒ J. Court can order termination
- ☒ K. Reasonable person's standard
- L. Article 1747
- M. Good Faith



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SECTION III: SHORT ANSWERS (10 MARKS)

ANSWER THE FOLLOWING QUESTIONS IN NOT MORE THAN 4 LINES

1. Art. 45 (1) of the Revised Family Code prescribes that the spouses shall deposit a copy of contract of marriage in court or with the office of civil status. What is the effect of non-compliance with this requirement particularly with reference to the validity of the contract of marriage? (5 MARKS)
2. List the important preconditions that are necessary to establish a fault based extra-contractual liability (5 MARKS)

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fault →

SECTION IV: SHORT ESSAYS (20 MARKS)

WRITE SHORT ESSAYS FOR THE FOLLOWING QUESTIONS IN NOT MORE THAN 10 LINES

1. "The purpose of the provisions of the Civil Code that run from Article 1676-1731 is to explain Article 1675." Discuss the validity or otherwise of this statement. (10 MARKS)
2. Discuss the differences and similarities between promise of sale and pre-emption under the Ethiopian property law. (10 MARKS).

SECTION V: HYPOTHETICAL CASES (30 MARKS)

READ THE FOLLOWING HYPOTHETICAL CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

1. HYPOTHETICAL CASE I (15 MARKS)

Mr. Belay used to live in Addis Ababa. He had five children; namely, Alemu, Niguse, Markos, Kelemu and Siyum. Mr. Belay was a rich person having four urban buildings in the town where he resided. In his life time, Mr. Belay donated one of his urban dwellings to one of his sons, Alemu. In his donation, Mr. Belay specified that Alemu will only get ownership and possession of the house up on the death of the former. Mr. Belay died intestate. Up on the death of Ato Belay the

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children sought the distribution of the property of the deceased equally among themselves including Alemu. Alemu claimed exclusive allotment of the urban building that was donated to him in addition to his share from the rest of the property.

Assuming yourself as a judge presiding over the case, what would be your decision on this issue? Can Alemu be successful in his claim? Why/why not? (15 MARKS)

2. HYPOTHETICAL CASE II (15 MARKS)

A businessperson called Bewuketu lives in Addis Ababa. He engages in making leather products. He purchases raw materials and processes the same to produce leather bags, belts etc. He also collects the raw materials from the countryside and stores them in a small warehouse till the resell price of the raw materials increases. However, as he does not have a machine that makes the leather as a finished product, he enters in to an agreement with Zeleke who has the machine and other tools for converting the semi-processed materials in to finished products. Bewuketu usually purchases raw leather from butchers, processes it to a certain stage, and forwards it to Zeleke. One day the officials of the bureau of trade in Addis Ababa region visited Mr. Bewuketu's activity and concluded that Mr. Bewuketu was a trader. They asked him why he did not discharge obligations of traders. Mr. Bewuketu responded that he was not a trader-pointing at article 9 of the Commercial Code.

Based on the given facts answer the following questions:

1. Do you agree with Bewuketu's argument? Why or why not? (8 MARKS)
2. Would it be different if Bewuketu performs the activities independently as a source of his livelihood without storing the raw materials? Why or why not? (7 MARKS)

Alemu.

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